

UNITED STATES COURT OF APPEALS

FOR THE SIXTH CIRCUIT

MARIO BANUELOS-JIMENEZ,

Petitioner,

v.

MERRICK B. GARLAND, Attorney General,

Respondent.

No. 22-3331

On Petition for Review from the Board of Immigration Appeals;
No. A 200 684 221.

Decided and Filed: May 10, 2023

Before: GILMAN, McKEAGUE, and GRIFFIN, Circuit Judges.

COUNSEL

ON BRIEF: Nathan R. Bogart, BOGART, SMALL + ASSOCIATES, Fayetteville, Arkansas, for Petitioner. Rebekah Nahas, UNITED STATES DEPARTMENT OF JUSTICE, Washington, D.C., for Respondent.

GRIFFIN, J., delivered the opinion of the court in which McKEAGUE, J., joined. GILMAN, J. (pp. 9–14), delivered a separate dissenting opinion.

OPINION

GRIFFIN, Circuit Judge.

Petitioner Mario Banuelos-Jimenez petitions for review of the Immigration Judge’s and Board of Immigration Appeal’s (BIA’s) decisions denying cancellation of removal. The immigration judge concluded, and the BIA affirmed, that his state conviction for third-degree

assault on a family member was a crime of violence and, therefore, he was statutorily ineligible for cancellation of removal. We agree and deny the petition for review.

I.

Banuelos-Jimenez, a native and citizen of Mexico, arrived in the United States in 1999. The Department of Homeland Security began removal proceedings against him in 2010, but those proceedings were administratively closed and re-calendared at the Department's request. Then in 2017, Arkansas police arrested Banuelos-Jimenez following a "screaming" incident with his wife. He was charged with, and pleaded guilty to, third-degree assault on a family or household member, Ark. Code Ann. § 5-26-309. The DHS subsequently re-initiated removal proceedings in 2018.

Banuelos-Jimenez applied for cancellation of removal. The Immigration Judge denied his application, concluding that the Arkansas statute was a crime of violence: Banuelos-Jimenez acted at least recklessly and "crimes of violence encompass not only crimes that require specific intent but also . . . engage in reckless conduct." Administrative Record, p. 67. Banuelos-Jimenez appealed, and the BIA affirmed. Despite an intervening change in law when the Supreme Court held that a crime of violence does not encompass reckless conduct, *see Borden v. United States*, 141 S. Ct. 1817 (2021), the BIA nevertheless concluded that Banuelos-Jimenez's conviction was a crime of violence—his conduct was also purposeful and, thus, necessarily involved a threat of force capable of causing physical pain or injury. This petition for review followed.

II.

We review questions of law de novo, including whether a prior offense constitutes a crime of violence under 18 U.S.C. § 16. *Van Don Nguyen v. Holder*, 571 F.3d 524, 528 (6th Cir. 2009). "Where the BIA reviews the immigration judge's decision and issues a separate opinion, rather than summarily affirming the immigration judge's decision," as happened here, "we review the BIA's decision as the final agency determination." *Khalili v. Holder*, 557 F.3d 429, 435 (6th Cir. 2009).

Banuelos-Jimenez is eligible for cancellation if he meets certain criteria, among which is that he “has not been convicted of an offense under” 8 U.S.C. § 1227(a)(2). *See* 8 U.S.C. § 1229b(b)(1)(C). Section 1227(a)(2) lists several crimes, including “a crime of domestic violence,” which means “any crime of violence (as defined in [18 U.S.C. § 16]) against a person committed by a current or former spouse of the person” 8 U.S.C. § 1227(a)(2)(E)(i). Under 18 U.S.C. § 16(a), a crime of violence is “an offense that has as an element the use, attempted use, or threatened use of physical force against the person or property of another.”¹ “Physical force” in this context is “*violent* force—that is, force capable of causing physical pain or injury to another person.” *Johnson v. United States*, 559 U.S. 133, 140 (2010). It is not merely “offensive touching,” which may constitute physical force under other statutes. *Compare United States v. Castleman*, 572 U.S. 157, 163 (2014) (interpreting 18 U.S.C. § 921(a)(33)(A)(ii)), *with Matter of Dang*, 28 I. & N. Dec. 541, 543–49 (BIA 2022).

Banuelos-Jimenez was convicted of violating Ark. Code Ann. § 5-26-309(a), which provides: “A person commits third degree assault on a family or household member if the person purposely creates apprehension of imminent physical injury to a family or household member.” To determine if this is a crime of violence, we use the categorical approach. *See Mellouli v. Lynch*, 575 U.S. 798, 804–06 (2015). This approach “focus[es] solely on whether the elements of the crime of conviction sufficiently match the elements” of a crime of violence, “while ignoring the particular facts of the case.” *Mathis v. United States*, 579 U.S. 500, 504 (2016). A crime is categorically a crime of violence if the “elements are the same as, or narrower than, those of the generic offense” in § 16(a). *Id.* (emphasis omitted). Banuelos-Jimenez concedes that the statute is not divisible, so the only issue before the panel is whether it is overbroad. *See United States v. Burris*, 912 F.3d 386, 393 (6th Cir. 2019) (en banc).

The issue here, then, is whether “purposely creat[ing] apprehension of imminent physical injury” necessarily involves “the use, attempted use, or threatened use of physical force.” We have addressed similar statutes before, concluding that a fear of physical injury necessarily results from a use or threat of physical force. For example, we have held that a Tennessee statute

¹The Supreme Court has held in *Sessions v. Dimaya*, 138 S. Ct. 1204 (2018), that subsection 16(b) was unconstitutionally vague.

proscribing the commission of a robbery by “putting the person in *fear*” was a crime of violence. *United States v. Mitchell*, 743 F.3d 1054, 1058–59 (6th Cir. 2014) (emphasis added). Under Tennessee law, “fear” was “fear of bodily injury and of present personal peril from violence offered or impending.” *Id.* at 1059. “Therefore, the commission of a robbery through fear, which in Tennessee reduces to the fear of bodily injury from physical force offered or impending, directly corresponds to [the] ‘use . . . or threatened use of physical force.’” *Id.* (ellipsis in original). And in *United States v. Fuller-Ragland*, we concluded that a similar Michigan statute prohibiting robbery by “put[ting] the person in fear” was a crime of violence. 931 F.3d 456, 460–65 (6th Cir. 2019). Michigan law required “the act causing the victim to be put in fear—however slight—must be ‘capable of causing physical pain or injury to another person.’” *Id.* at 462 (citation omitted). Therefore, the underlying act *causing* the fear necessarily included at least a threat of force: “‘putting in fear’ of physical injury involves a ‘threatened use’ of at least enough force to overcome a victim’s resistance.” *Id.* at 465. *See also United States v. Verwiebe*, 874 F.3d 258, 261 (6th Cir. 2017), *overruled on other grounds by Borden*, 141 S. Ct. 1817 (“[C]rimes requiring proof of serious physical injury necessarily require proof of violent physical force.”).

We are not alone on this issue, for our sister circuits agree. In *United States v. Melchor-Meceno*, the Ninth Circuit concluded that a statute criminalizing menacing, i.e., “knowingly plac[ing] or attempt[ing] to place another person in fear of imminent serious bodily injury,” was a crime of violence. 620 F.3d 1180, 1184 (9th Cir. 2010) (citation omitted). “It is impossible to conceive of a situation involving fear of imminent serious bodily injury without a threat of force.” *Id.* at 1185. The statute required a “defendant to cause *fear* of injury rather than simply causing the injury itself,” but the “means of placing a person in fear of imminent serious bodily injury is a threat of force.” *Id.* *See also United States v. De La Fuente*, 353 F.3d 766, 770 (9th Cir. 2003) (“[A] criminal statute requiring the creation and use of a ‘fear of . . . unlawful injury’ includes the element of a ‘threatened use of physical force.’” (alteration in original)). In *United States v. Herron*, the Tenth Circuit held that a statute prohibiting “knowingly plac[ing] or attempt[ing] to place another person in fear of imminent serious bodily injury . . . easily satisfies the requirement of the threatened use of physical force against the person of another.” 432 F.3d 1127, 1138 (10th Cir. 2005) (internal quotation marks omitted). And in *United States v. Forrest*,

the Eighth Circuit concluded that “[a] threat that creates a fear of imminent serious bodily injury is a threat of physical force,” and, thus, a crime of violence. 611 F.3d 908, 910–11 (8th Cir. 2010) (internal quotation marks omitted). The Seventh Circuit has reached a similar conclusion. See *United States v. Lewis*, 405 F.3d 511, 514 (7th Cir. 2005) (holding that a statute proscribing robbery while “putting any person in fear” of physical injury is a crime of violence).

The most persuasive of these cases comes from the Ninth Circuit, which has addressed language nearly identical to that in § 5-26-309(a). In *United States v. Ceron-Sanchez*, the court concluded that an Arizona statute, Ariz. Rev. Stat. § 13-1203(A)(2), proscribing “[i]ntentionally placing another person in reasonable apprehension of imminent physical injury” was a crime of violence. 222 F.3d 1169, 1172–73 (9th Cir. 2000), *overruled on other grounds by Fernandez-Ruiz v. Gonzales*, 466 F.3d 1121 (9th Cir. 2006) (en banc). Because the force needed was “violent in nature,” it necessarily “require[d] either the use, attempted use, or threatened use of force against the person of another.” *Id.* at 1172–73 (citation omitted). This holding was reaffirmed in *United States v. Cabrera-Perez*: this statute “satisfie[d] the first prong of 18 U.S.C. § 16 because ‘[i]ntentionally placing another person in reasonable apprehension of imminent physical injury,’ has as an element ‘the use, attempted use, or threatened use of physical force against the person or property of another.’” 751 F.3d 1000, 1007 (9th Cir. 2014) (internal citations omitted; second alteration in original). This was distinguished from other statutes that only proscribed “reckless” conduct. *Id.*; cf. *Fernandez-Ruiz*, 466 F.3d at 1132.

These two cases are particularly instructive because the Arkansas statute at issue proscribes the same exact conduct. Both statutes require an “apprehension of imminent physical injury.” Ark. Code Ann. § 5-26-309(a); Ariz. Rev. Stat. § 13-1203(A)(2). And both require this to be done purposefully or intentionally (which, in criminal statutes, carry the same meaning). See, e.g., Model Penal Code § 1.13(12) (defining “intentionally” as “purposely”); *Sykes v. United States*, 564 U.S. 1, 12–13 (2011), *overruled on other grounds by Johnson v. United States*, 576 U.S. 591 (2015) (noting that conduct done “knowingly or intentionally” is generally “purposeful”). Under both statutes, a person must intentionally or purposely create an apprehension of physical injury. Physical force is one that causes physical injury; thus, physical injury necessarily results from physical force. Consequently, an *apprehension* of injury must

and will result from a threat of physical injury. And the statutes limit this conduct to intentional conduct, rather than reckless or otherwise, indicating that a person must commit the “use, attempted use, or threatened use of force” with the intent to do so. *Cabrera-Perez*, 751 F.3d at 1007. While the statutes may not require the perpetrator to intend *actual* harm, he or she still intends to *threaten* harm. The latter is all that § 16(a) requires. To the extent that the defendant only recklessly or negligently threatened someone, that would not be covered by § 5-26-309 because the statute requires “purposely” creating the fear. *Cf. Melchor-Meceno*, 620 F.3d at 1184 (“[A] predicate offense must [also] require intentional use, attempted use, or threatened use of force to constitute a crime of violence . . .; neither recklessness nor negligence is enough.” (citation omitted; second alteration in original)). Because the two statutes are materially identical, holding that § 5-26-309(a) is not a crime of violence would create discord with another circuit.

Banuelos-Jimenez presents several examples purportedly showing that the Arkansas statute is overbroad, but we find none persuasive. Banuelos-Jimenez states that one could be guilty under the statute for an ill-received prank, such as by placing an empty bucket on an open door such that a passerby would fear harm when it falls on him. A petitioner must show “a realistic probability, not a theoretical possibility” that the state would criminalize this conduct, and it is decidedly unrealistic that this conduct would be charged. *See United States v. Paulk*, 46 F.4th 399, 403 (6th Cir. 2022) (quoting *Gonzales v. Duenas-Alvarez*, 549 U.S. 183, 193 (2007)). But even assuming the state would prosecute this conduct, these actions still intentionally threaten physical injury—a crime of violence under § 16(a) does not necessarily require the actual intention to *use* force, merely an actual intention to *threaten* force. Even if the actor did not intend to do real harm, he still has purposely created a fear of harm resulting from an intentional threat of harm (namely, the bucket falling on the person’s head). Petitioner also provides an example like his underlying conviction: tempers become heated and two parties get into a shouting match where one creates an “apprehension of imminent physical injury.” But as the caselaw above demonstrates, one does not fear injury without a threat of injury. *See Fuller-Ragland*, 931 F.3d at 465. In a shouting match, merely yelling at another about the weather, someone’s cooking, or one’s relatives does not necessitate a threat of injury—such a threat must

exist. The person threatening another may not fully intend to use or attempt to use force, but he or she may still purposely make statements that constitute a threat of harm.

The dissent's examples are also unpersuasive. First, shouting "fire" in a crowded theatre still involves an intentional threat of physical injury: those in the theater would fear dying in the threatened fire. Even if the fire is not real, the threat to one's physical health is intentionally made. Then, in *P.J. v. State*, a juvenile was convicted under a materially identical Arkansas statute for "grabb[ing] [a woman's] hoodie, pull[ing] it away from her chest, and reach[ing] his hand into her bra." 578 S.W.3d 307, 311 (Ark. Ct. App. 2019). This conduct certainly involved the use, attempted use, or threatened use of force—the defendant actually grabbed a woman's shirt and reached down it. That is a use of physical force that either caused physical injury or, at the very least, threatened physical injury (such as further non-consensual sexual acts). And the "aggressive panhandler" described in *Rodgers v. Bryant* employed a similar threat by prohibiting a bystander from entering a nearby business by "holding the door" and by "aggressively demanding money to the point where [the bystander] felt unsafe." 301 F. Supp. 3d 928, 934 (E.D. Ark. 2017) (alteration in original). Even if the panhandler never intended actual harm to the bystander, his actions purposely created a threat of physical harm by conditioning access to a business on payment of money.

In sum, § 5-26-309 necessarily involves a threat of physical harm, because one cannot fear harm without being threatened by it. Caselaw unequivocally establishes the logical connection between the two: "[i]t is impossible to conceive of a situation involving fear of imminent serious bodily injury without a threat of force." *Melchor-Meceno*, 620 F.3d at 1185. Therefore, we conclude that § 5-26-309 is categorically a crime of violence because it involves the "threatened use of force against the person of another." 18 U.S.C. § 16(a).

III.

For the foregoing reasons, we deny the petition for review.